

WEBSITE AND MANAGEMENT SYSTEM AGREEMENT

This Website and Management System Agreement ("Agreement") is entered into on April 8, 2026, by and between:

Developer: *Dr. Naing Zaw Aung*

Address: *Nay Pyi Taw*

Contact: *09 440401168*

Email: *naingzawaung1990@gmail.com*

and

Client: *Myanmar New Era International Education Centre*

Address: *No. 5311, Myat Lay Street and Sagaing St., Ottarathiri 15015*

Contact: *095004980*

Email: *office@mmnea.com*

Together they are referred to as the "Parties."

1. Project Overview

The Developer agrees to design, develop, and deliver a complete Website and Management System for the Client based on the specifications outlined in Annex A (Quotation dated March 29, 2026). The final product will be a fully functional, responsive system meeting the agreed-upon requirements and timeline.

2. Scope of Work

The system includes the features, modules, and functionalities explicitly listed in the Quotation dated 29 March 2026 (attached as Annex A), which form an integral part of this Agreement. The scope is structured into the following parts:

Part	Description
Part I	Website & Placement Test System (Modules 1–4)
Part II	Admin Side (Modules 5–16)
Part III	Teacher Side (Modules 17–24)
Part IV	Student Side (Modules 25–31)

3. Timeline

- **Development Period:** Within 2 months from the date of receiving the initial payment (30% advance) from the Client.
- **Estimated Completion Date:** On or before June 8, 2026.

Delays caused by the Client (e.g., late content delivery, delayed feedback) may extend the timeline.

4. Payment Terms

- **Total Project Fee: 6,800,000 MMK** (Six Million Eight Hundred Thousand Myanmar Kyats)
- **Payment Schedule:**
 - 30% (**2,040,000 MMK**) upon signing of this Agreement.
 - 40% (**2,720,000 MMK**) upon completion and approval of Part I (Website & Placement Test).
 - 30% (**2,040,000 MMK**) upon final delivery, successful testing, and written acceptance by the Client.
- **Payment Method:** To be mutually agreed upon by the Parties.
- **Non-Refundable:** All payments are non-refundable once the corresponding phase of work has been completed and approved by the Client. In the event of early termination, payment shall be made in proportion to the amount of work completed.
- **Acceptance Criteria:** The system is accepted only when:
 - Admin, Teacher, and Student can all log in.
 - Placement test auto-scores Listening & Reading.
 - The teacher can enter marks and generate a transcript PDF.
 - Absence of critical errors (crash, data loss).
 - Differences in design preference (UI/UX), such as color schemes or layout preferences that do not affect functionality, shall not be considered valid grounds for rejection.

If any of these criteria fail, the Client can refuse acceptance. The Developer has **14 days** to fix.

5. Client Responsibilities

The Client agrees to:

- Pay all payments within the terms stated in this Agreement.
- Provide necessary content, feedback, and approvals promptly to facilitate the project timeline.
- Arrange for and bear all costs for hosting and domain registration (or reimburse the Developer if done on behalf of the Client), as per Section 6.

6. Recurring Costs

The following costs are not included in the contract price and shall be borne by the Client:

Item	Cost	Notes
Domain + Hosting	800,000 MMK/year	Domain name, 70GB storage, SSL certificate. Registered under the Client's name and paid directly by the Client to the hosting provider (not to the Developer).
Monthly Maintenance	100,000 MMK	Server monitoring, security updates, and weekly backups. Starts after the free support period.

- **Note on Pricing:** The cost of the domain and hosting is based on current market rates. This fee may change in future years due to market fluctuations, such as changes in foreign exchange rates or increases in provider prices.

- **Domain & Hosting Process:** The Developer will assist the Client in purchasing hosting and a domain in the Client's name. The Client shall make payment directly to the hosting provider.
- The Developer shall not be responsible for any downtime, data loss, or security issues caused by third-party hosting providers, but will use reasonable efforts to assist the Client in restoring the system.

7. Deliverables

Upon final payment, the Developer shall deliver:

- Full source code of the entire system
- Database design and structure
- User Management Systems (Admin, Teacher, Student)
- Fully responsive design (Mobile, Tablet, Desktop)
- Customizable Question Bank with 20 sample multiple-choice questions
- One (1) comprehensive training session
- Deployment assistance

8. Post-Launch Support

- **Free Bug Fixes:** The Developer will provide one month of free bug fixes after launch.
- **Security:** The Developer agrees to implement the system using industry-standard security practices to protect data integrity. However, the Developer is not liable for breaches caused by third-party hosting vulnerabilities or Client-side credential negligence.
- **Ongoing Maintenance:** Ongoing maintenance is available at the monthly rate specified in Section 6, beginning after the free support period.

9. Intellectual Property Rights

Upon full payment, the Client shall own all rights, title, and interest in the source code, database, and all deliverables. The Developer hereby assigns all such rights to the Client effective upon receipt of full payment.

- **Third-Party Components:** The Developer shall provide a list of all third-party libraries, frameworks, and their license types before final delivery. The Client acknowledges that such third-party components may be subject to their own license terms.

10. Revisions & Additional Features

- **Minor Revisions:** This Agreement includes one round of minor revisions at no additional cost. Minor revisions are strictly limited to text updates, color changes, and minor layout adjustments, and shall not include any changes to system functionality, logic, or database structure.
- **Additional Features:** Any features, modules, functionalities, or changes not listed in Annex A shall be considered "Additional Features."
- **Separate Agreement Required:** Additional Features shall not be included in this Agreement. If the Client wishes to add any Additional Features, the Parties shall enter into a separate written agreement or change order specifying the description, timeline, and additional fees.

11. Confidentiality

Both Parties agree to maintain the confidentiality of any proprietary or sensitive business information exchanged during the project, including business operations, source code, and pricing.

12. Termination

Either Party may terminate this Agreement with 15 days' written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within the notice period. Upon termination, the Client shall pay for all work completed up to that point, and the Developer will provide all completed deliverables to the Client upon receipt of such payment.

13. Dispute Resolution

The Parties shall first attempt to resolve any dispute through good-faith negotiation. If the dispute cannot be resolved, either Party may submit the dispute to the competent courts of Myanmar.

14. Entire Agreement

This document, along with Annex A (Quotation dated March 29, 2026), constitutes full agreement between the Parties and supersedes any previous discussions or understandings. In the event of any conflict between this Agreement and Annex A, the terms of this Agreement shall prevail. **Both Parties shall sign on Annex A to acknowledge its inclusion as an integral part of this agreement.**

IN WITNESS WHEREOF, the Parties have executed this Website and Management System Development Agreement as of the date first written above.

Developer:

Client:

Signature: _____

Signature: _____

Name: Dr. Naing Zaw Aung

Name: _____

Date: - 4 - 2026

Date: - 4 - 2026